

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JASMIN MONTANEZ and JUAN MONTANEZ,

Index No.:

Plaintiffs,

-against-

SUMMONS

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER ERICK CORNIEL and
POLICE OFFICER IVAN LUGO,

Defendants.

-----X
Plaintiffs designate New York County as the place of Trial.
The basis of the venue is place of occurrence. Plaintiffs resides at 110 Baruch Drive,
New York, New York 10002

TO: THE ABOVE NAMED DEFENDANTS

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiffs' attorney within twenty (20) days after the service of this summons, exclusive of the date of service (or within thirty days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 3, 2014

Yours, etc.,



CAROL ABRAMS, P.C.

Attorneys for Plaintiff

360 West 21st Street, Suite 3F
New York, New York 10011
tel. (212) 243-2681
fax (212) 243-2639

Defendants' Addresses:

100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JASMIN MONTANEZ and
JUAN MONTANEZ,

Plaintiffs,

-against-

VERIFIED COMPLAINT

Index No.

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER ERICK CORNIEL, and
POLICE OFFICER IVAN LUGO,

Defendants.

-----X

Plaintiffs, by their attorney, CAROL ABRAMS, P.C., complaining of the defendants,
respectfully alleges as follows:

1. That at all times mentioned herein, plaintiff, JASMIN MONTANEZ (hereinafter “JASMIN”) was and still is a resident of the County of New York, City and State of New York.
2. That at all times mentioned herein, plaintiff, JUAN MONTANEZ (hereinafter “JUAN”) was and still is a resident of the County of New York, City and State of New York.
3. That at all times mentioned herein, defendant, THE CITY OF NEW YORK (hereinafter “THE CITY”) was and is a municipal corporation existing under and by virtue of the laws of the State of New York.
4. That at all times mentioned herein, defendant, THE CITY, by its agents, servants and/or employees operated, maintained and controlled defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter “NYPD”), including all police officers thereof.

5. That, upon information and belief, at all times mentioned herein, defendants POLICE OFFICER ERICK CORNIEL (shield #29083) and POLICE OFFICER IVAN LUGO (shield #28665) were and still are employed by defendant, NYPD and their activities as set forth herein were performed both on an individual basis as well as on behalf of defendants, NYPD and THE CITY.

6. That plaintiffs duly presented and served upon defendants their Notice of Claim and Demand for Payment of Damages by serving same upon said defendants within 90 days of the accrual of plaintiff's said claim pursuant to the statutes in such cases made and provided.

7. That although more than thirty (30) days have elapsed since the presentation and service of said Notice of Claim and Demand for Payment, as aforesaid, defendants have failed to make any adjustment or payment of said claim.

8. That an oral examination was held by defendants of the plaintiff, JASMIN, within one year of the accrual of the claim herein, to wit: on January 9, 2014.

9. That an oral examination was held by defendants of the plaintiff, JUAN, within one year of the accrual of the claim herein, to wit: on February 24, 2014.

10. That this action is commenced within one year and ninety (90) days of the date of accrual of plaintiffs' claim herein.

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JUAN MONTANEZ,
AGAINST DEFENDANTS POLICE OFFICER ERICK CORNIEL
AND POLICE OFFICER IVAN LUGO**

11. Plaintiff repeats and realleges each and every allegation set forth in paragraphs numbered "1" through "10" with the same force and effect as if fully set forth at length herein.

12. That on or about the 6th day of March, 2013 at approximately 3:30 a.m. when

plaintiff JUAN was lawfully outside the door of apartment 1B in the building known as 110 Baruch Drive, New York, New York 10002 where he resided, he was accosted by POLICE OFFICER ERICK CORNIEL and POLICE OFFICER IVAN LUGO, and while in their custody, he was caused to sustain severe and permanent personal injuries as the result of their assault and battery upon his person, without cause or provocation. The said assault and battery continued after he was inside said premises, and he was subjected to the continued negligent use of excessive force, the negligent and intentional infliction of mental distress, harassment and prejudicial treatment, and violation of his civil rights.

13. That the aforesaid assault and battery was unprovoked, unwarranted and unjustified, without reasonable or probable cause, and with great force and violence.

14. That POLICE OFFICER ERICK CORNIEL and POLICE OFFICER IVAN LUGO conducted themselves in a manner that was wanton, reckless, malicious, and exhibited a gross indifference to and wanton disregard for the life and safety of plaintiff JUAN.

15. That as a result of the foregoing, JUAN was injured mentally and bodily, including but not limited to, multiple injuries to his head, face, body and limbs, including a cracked skull, requiring the insertion of staples into his head, and he was otherwise rendered sick, sore, lame and disabled; was caused to suffer conscious pain and suffering, as well as mental anguish, and was otherwise damaged.

16. That as a result of the foregoing, plaintiff, JUAN MONTANEZ, has been damaged in a sum to be determined by the trier of fact, in an amount which exceeds the jurisdictional limits of all our Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JASMIN MONTANEZ,
AGAINST DEFENDANTS, POLICE OFFICER ERICK CORNIEL
AND POLICE OFFICER IVAN LUGO**

17. Plaintiff repeats and realleges each and every allegation set forth in paragraphs numbered "1" through "16" with the same force and effect as if fully set forth at length herein.

18. That on or about the 6th day of March, 2013 at approximately 3:30 a.m. while plaintiff, JASMIN was lawfully in apartment 1B in the building known as 110 Baruch Drive, New York, N.Y. 10002, POLICE OFFICER ERICK CORNIEL and POLICE OFFICER IVAN LUGO, without cause or justification, entered the said premises where plaintiffs, JASMIN and JUAN resided and while inside of said premises, without cause or justification, perpetrated an assault and battery upon the person of plaintiff, JASMIN, and she was subjected to the negligent use of excessive force, the negligent and intentional infliction of mental distress, harassment and prejudicial treatment, and violation of her civil rights.

19. That the aforesaid assault and battery was unprovoked, unwarranted and unjustified, without reasonable or probable cause, and with great force and violence.

20. That POLICE OFFICER ERICK CORNIEL and POLICE OFFICER IVAN LUGO, conducted themselves in a manner that was wanton, reckless, malicious, and exhibited a gross indifference to and wanton disregard for the life and safety of plaintiff.

21. That as a result of the foregoing, JASMINE was injured mentally and bodily, including but not limited to, multiple injuries to her head, body and limbs, including injury to her eye, and she was otherwise rendered sick, sore, lame and disabled; was caused to suffer conscious pain and suffering, as well as mental anguish; and was otherwise damaged.

22. That as a result of the foregoing, plaintiff, JASMIN MONTANEZ, has been damaged in a sum to be determined by the trier of fact, in an amount which exceeds the jurisdictional limits of all our Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JUAN MONTANEZ
AGAINST DEFENDANTS, THE CITY AND NYPD**

23. Plaintiff repeats and realleges each and every allegation set forth in paragraphs numbered "1" through "22" with the same force and effect as if fully set forth at length herein.

24. That on or about the 6th day of March, 2013 at approximately 3:30 a.m. when plaintiff JUAN was lawfully outside the door of apartment 1B in the building known as 110 Baruch Drive, New York, New York 10002 where he resided, he was accosted by POLICE OFFICER ERICK CORNIEL AND POLICE OFFICER IVAN LUGO, and while in their custody, he was caused to sustain severe and permanent personal injuries as the result of their assault and battery upon his person, without cause or provocation, and he was subjected to the negligent use of excessive force, the negligent and intentional infliction of mental distress, harassment and prejudicial treatment, and violation of his civil rights.

25. That the aforesaid occurrence and the resultant injuries to plaintiff JUAN were caused as a result of the assault and battery by THE CITY and the NYPD's agents, servants and/or employees, without any action on the part of the plaintiff contributing thereto.

26. That as a result of the foregoing, JUAN was injured mentally and bodily, including but not limited to, multiple injuries to his head, body and limbs, including a cracked skull, requiring the insertion of staples into his head, and he was otherwise rendered sick, sore, lame and disabled; was caused to suffer conscious pain and suffering, as well as mental anguish; and was otherwise

damaged.

27. That as a result of the foregoing, plaintiff, JUAN MONTANEZ has been damaged in a sum to be determined by the trier of fact, in an amount which exceeds the jurisdictional limits of all our Courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JASMIN MONTANEZ
AGAINST DEFENDANTS, THE CITY AND NYPD**

28. Plaintiff repeats and realleges each and every allegation set forth in paragraphs numbered "1" through "27" with the same force and effect as if fully set forth at length herein.

29. That on or about the 6th day of March, 2013 at approximately 3:30 a.m. while plaintiff, JASMIN was lawfully in apartment 1B in the building known as 110 Baruch Drive, New York, N.Y. 10002, POLICE OFFICER ERICK CORNIEL and POLICE OFFICER IVAN LUGO, without cause or justification, entered the said premises where plaintiffs, JASMIN and JUAN resided and while inside of said premises, without any cause or justification, perpetrated an assault and battery upon the person of plaintiff, JASMIN, and she was subjected to the negligent use of excessive force, the negligent and intentional infliction of mental distress, harassment and prejudicial treatment, and violation of her civil rights.

30. That the aforesaid occurrence and the resultant injuries to plaintiff JASMIN, were caused as a result of the assault and battery by THE CITY and the NYPD's agents, servants and/or employees, without any action on the part of the plaintiff contributing thereto.

31. That as a result of the foregoing, JASMINE was injured mentally and bodily, including but not limited to, multiple injuries to his head, body and limbs, including injury to her eye, and she was otherwise rendered sick, sore, lame and disabled; was caused to suffer conscious

pain and suffering, as well as mental anguish; and was otherwise damaged.

32. That as a result of the foregoing, plaintiff, JASMIN MONTANEZ, has been damaged in a sum to be determined by the trier of fact, in an amount which exceeds the jurisdictional limits of all our Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS JUAN AND JASMINE
AGAINST DEFENDANTS, THE CITY and NYPD**

33. Plaintiffs repeat and reallege each and every allegation set forth in paragraphs numbered "1" through "32" with the same force and effect as if fully set forth at length herein.

34. That the occurrence hereinabove described was caused not only by defendants, POLICE OFFICER ERICK CORNIEL and POLICE OFFICER IVAN LUGO, willful and intentional acts but also by the negligence, carelessness and recklessness of defendants, THE CITY and NYPD, in the hiring, training, supervision, screening and control of its employees, in that they knew or should have known, prior to the occurrence herein, of the lack of judgment, lack of mental capacity, ability and temperament that their agent(s), servant(s) and employee(s) displayed and their propensity for violent behavior.

35. That as a result of the foregoing, JUAN was injured mentally and bodily, including but not limited to, multiple injuries to his head, body and limbs, including a cracked skull, requiring the insertion of staples into his head, and he was otherwise rendered sick, sore, lame and disabled; was caused to suffer conscious pain and suffering, as well as mental anguish; and was otherwise damaged.

36. That as a result of the foregoing, JASMIN was injured mentally and bodily, including but not limited to, multiple injuries to her head, body and limbs, including injury to her

eye, and she was otherwise rendered sick, sore, lame and disabled; was caused to suffer conscious pain and suffering, as well as mental anguish; and was otherwise damaged.

37. That as a result of the foregoing, plaintiffs, JUAN MONTANEZ and JASMIN MONTANEZ have been damaged in a sum to be determined by the trier of fact, in an amount which exceeds the jurisdictional limits of all our Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs, JUAN MONTANEZ and JASMIN MONTANEZ, demands judgment as follows:

A. On the First Cause of Action on behalf of plaintiff, JUAN MONTANEZ, against defendants, POLICE OFFICER ERICK CORNIEL and POLICE OFFICER IVAN LUGO, in a sum to be determined by the trier of fact, in an amount which exceeds the jurisdictional limits of all our Courts which would otherwise have jurisdiction;

B. On the Second Cause of Action on behalf of plaintiff, JASMIN MONTANEZ, against defendants, POLICE OFFICER ERICK CORNIEL and POLICE OFFICER IVAN LUGO, in a sum to be determined by the trier of fact, in an amount which exceeds the jurisdictional limits of all our Courts which would otherwise have jurisdiction;

C. On the Third Cause of Action on behalf of plaintiff, JUAN MONTANEZ, against defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT in a sum to be determined by the trier of fact, in an amount which exceeds the jurisdictional limits of all our Courts which would otherwise have jurisdiction;

D. On the Fourth Cause of Action on behalf of plaintiff, JASMIN MONTANEZ, against defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT

in a sum to be determined by the trier of fact, in an amount which exceeds the jurisdictional limits of all our Courts which would otherwise have jurisdiction;

E. On the Fifth Cause of Action on behalf of plaintiffs, JUAN MONTANEZ and JASMIN MONTANEZ, against defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, in a sum to be determined by the trier of fact, in an amount which exceeds the jurisdictional limits of all our Courts which would otherwise have jurisdiction;

F. The costs and disbursements of this action, and

G. Such other, further and different relief as to the Court may seem just and proper.



CAROL ABRAMS, P.C.
Attorney for Plaintiffs
Office & P.O. Address
360 West 21st Street, Ste. 3F
New York, New York 10011
(212) 243-2681

VERIFICATION

STATE OF NEW YORK)

: ss.:

COUNTY OF NEW YORK)

JUAN MONTANEZ, being duly sworn, deposes and says:

That I am one of the plaintiffs in the within action; that I have read the within Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein alleged to be upon information and belief and as to those matters I believe them to be true.


JUAN MONTANEZ

Sworn to before me this

4 day of March, 2014



CAROL L. ABRAMS
Notary Public, State of New York
No. 01A64752847
Qualified in New York County
Commission Expires ~~Nov 09, 2014~~

Feb 6, 2018

STATE OF NEW YORK)

COUNTY OF NEW YORK)

JASMIN MONTANEZ, being duly sworn, deposes and says:

That I am one of the plaintiffs in the within action; that I have read the within Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein alleged to be upon information and belief, and as to those matters I believe them to be true.


JASMIN MONTANEZ

Sworn to before me this

4th day of March, 2014



CAROL L. ABRAMS
Notary Public, State of New York
No. 01A-762567
Qualified in New York County
Commission Expires ~~Nov 06, 2018~~
RB 6, 2018

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JUAN MONTANEZ and JASMIN MONTANEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ERICK CORNIEL and POLICE OFFICER
IVAN LUGO,

Defendants.

**SUMMONS and VERIFIED
COMPLAINT**

CAROL ABRAMS, P.C.
Attorney for Plaintiffs
360 West 21st Street, Ste. 3F
New York, New York 10011
(212) 243-2681

Signature (Rule 130-1.1-a)


CAROL ABRAMS